

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 755

Introduced by Wordekemper, 15.

Read first time January 07, 2026

Committee:

- 1 A BILL FOR AN ACT relating to emergency medical services; to adopt the
- 2 Emergency Service Peer Support Act.
- 3 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 5 of this act shall be known and may be
2 cited as the Emergency Service Peer Support Act.

3 **Sec. 2.** (1) The Legislature finds that it is common for employees
4 of emergency service agencies to experience stress and emotional
5 difficulties as a result of traumatic events experienced on a regular
6 basis. Peer support can be beneficial to emergency service employees and
7 can reduce the likelihood that such employees will experience long-term
8 effects that may have a negative impact on their employment.

9 (2) The Legislature further finds that confidentiality is a
10 necessary foundation of effective peer support. The privileged and
11 confidential nature of a peer support session ensures confidentiality and
12 encourages an employee to speak openly to a peer without fear that a
13 communication could be used against the employee in a disciplinary or
14 other hearing.

15 **Sec. 3.** For purposes of the Emergency Service Peer Support Act:

16 (1) Employee means an individual employed by an emergency service
17 agency as a law enforcement officer, a firefighter, an emergency medical
18 service provider, a dispatcher, a correctional officer, a hospital staff
19 member, or a civilian staff member;

20 (2) Emergency service agency means a law enforcement agency, a fire
21 department, an emergency medical service, a correctional facility, a
22 hospital, a dispatch center, a rescue service, or another entity that
23 provides emergency response services;

24 (3) Peer means an individual approved by an emergency service agency
25 who has been trained in peer support techniques in compliance with the
26 agency's guidelines to provide emotional and moral support and who
27 provides confidential support and assistance to an employee experiencing
28 personal or professional issues. A peer may be a current employee, former
29 employee, or any other person approved by the emergency service agency;

30 (4) Peer support means a structured program in which a peer helps an
31 employee identify issues early, connects an employee to appropriate

1 resources, and fosters a supportive and healthy workforce. An employee
2 receives emotional, practical, and resource-based support from a peer.
3 Peer support is built upon shared-experience, confidentiality, active
4 listening, and early intervention to promote sound mental health and
5 resilience. Peer support may include a: (a) One-on-one interaction, (b)
6 crisis intervention, (c) critical incident defusing, (d) critical
7 incident stress management debriefing, (e) referral to an appropriate
8 resource such as a mental health clinician, a mental health treatment
9 center, or another emergency service agency, or (f) follow-up as needed.
10 Peer support is designed to ensure that no employee faces challenges
11 alone;

12 (5) Peer support session means a confidential communication between
13 an employee and a peer that occurs for the purpose of providing emotional
14 support, crisis intervention, or assistance related to personal or
15 professional challenges. A peer support session may occur within a formal
16 program established under the Emergency Service Peer Support Act or may
17 be an informal interaction between an employee and a peer approved by an
18 emergency service agency. A peer support session is accomplished
19 primarily through listening, assessing, assisting with problem solving,
20 making appropriate referrals to professional providers, and conducting
21 follow-up as needed. A peer support session may consist of a single
22 interaction or multiple interactions over a period of time. The
23 privileged and confidential status of communications made during a peer
24 support session shall continue indefinitely except as provided in section
25 4 of this act or if an employee expressly waives that privilege; and

26 (6) Program means a peer support program established or approved by
27 an emergency service agency to train an individual to serve as a peer and
28 to conduct peer support sessions.

29 **Sec. 4.** (1) A communication made by (a) an employee in a peer
30 support session and (b) a communication between a peer and a staff member
31 of a program shall be confidential and shall not be disclosed to any

1 person. This section does not prohibit a communication between peers or
2 between a peer and program staff in furtherance of the purpose of the
3 provision of peer support to an employee.

4 (2) A peer shall expressly indicate that a peer support session is
5 underway at the beginning of a peer support session prior to any
6 communication by an employee.

7 (3) A confidential communication pursuant to this act shall be
8 privileged and inadmissible as evidence in any civil, criminal,
9 administrative, or arbitration proceeding. No peer or program staff shall
10 be compelled to testify or produce records, notes, or documentation
11 concerning any peer support session in any proceeding, except as
12 otherwise provided in subsection (4) of this section. Any notes, records,
13 or documentation created during, or related to, a peer support session
14 shall be confidential and not subject to discovery, subpoena, or other
15 legal means to compel disclosure.

16 (4) The confidentiality and privilege provisions of the Emergency
17 Service Peer Support Act shall not apply to: (a) A threat of future
18 suicide, homicide, or felonious assault made by an employee in a peer
19 support session or information conveyed in a peer support session related
20 to a threat of future suicide, homicide, or felonious assault; (b)
21 information mandated by law or agency policy to be reported, including,
22 but not limited to, information relating to domestic violence, sexual
23 assault, child abuse or neglect, or elder abuse or neglect; (c) an
24 admission of criminal conduct; or (d) an admission to an act that could
25 be construed as refusal to perform a duty to protect others.

26 (5) No individual who provides assistance to an employee as a peer
27 under the Emergency Service Peer Support Act shall be liable for any
28 civil damages as a result of an act of commission or omission arising
29 out, and in the course, of rendering such assistance in good faith or any
30 act or failure to act to provide or arrange for mental health treatment
31 or care for an employee.

1 (6) An emergency service agency that establishes a program shall
2 develop policies and rules that impose disciplinary measures upon a peer
3 who violates the confidentiality provisions of the Emergency Service Peer
4 Support Act.

5 (7) Records of communications made confidential under this section
6 shall be exempt from disclosure under sections 84-712 to 84-712.09.

7 **Sec. 5.** An emergency service agency may refer an employee to a peer
8 in the employee's emergency service agency or to a program available
9 through another emergency service agency. An employee may independently
10 seek peer support from a peer approved by any emergency service agency.
11 An emergency service agency shall not mandate that an employee
12 participate in a program.